

JEN RUBIN'S COLUMNS

Americans Reject ICE Hellscape: Trump's ethnic cleansing and terror backfire

62 Days to the Midterms



JENNIFER RUBIN

SEP 02, 2026



1,355



162



291

Sh

Under the false pretense of protecting the border and removing “[the worst of the worst](#)” undocumented immigrants, the Trump regime has unleashed a torrent of violence and lawlessness against hardworking immigrants. It has torn apart families [eclipsed previous administrations](#) in the number of deaths and [medical emergencies](#) those held in ICE custody, and killed innocent Americans on our streets.



(Credit: Douglas Rissing)

Trump's [onslaught](#) has [created economic chaos](#) from [coast](#) to [coast](#). *The Economist* recently examined the results of Trump's horrific approach: labor shortages, shrink workforce, slower growth, and loss of economic dynamism. "Longer-lasting damage may come from a slowdown in high-skilled immigration," it found. "America turned its ability to attract the best of the brightest into an extraordinary economic advantage. Mr Trump's immigration crackdown risks leaving the country with fewer workers today and fewer innovators tomorrow."

Instead of targeting dangerous criminals, the Trump regime has systematically deported — en masse — law-abiding, productive, non-white migrants. "A [surge in immigration arrests](#) this summer has swept up thousands. . . includ[ing] people [married to U.S. citizens](#), people who had [entered legally](#) and were pursuing an asylum claim, and others with a [temporary legal status](#) that the administration pushed to

revoke.” [The New York Times](#) reported last week. The statistics repudiate the regime lie that its approach protects innocent Americans. “**The share with a past violent criminal conviction fell to less than 4 percent.**” [Emphasis added.]

The Trump team does not hide its ambition to “ethnically cleanse” America. His immigration crew has transformed the [status of hundreds of thousands](#) of non-white persons from countries in Africa, South America, and the Caribbean by revoking their Temporary Protected Status. Hardworking people who are *legally present* must nevertheless prepare to lose employment, separate from family, and either flee the nation or face forcible expulsion.

In rounding up TPS refugees and other legally present immigrants, the administration has [violated due process rights](#) and subjected thousands of people (over [23,000 in total](#)) to deportation under hellish conditions in [third countries](#) in which the [deportees have no connection](#) to their families and where they are subject to torture and often repatriation to their country of origin. Scores of immigrants — some with serious medical conditions and most under duress/physical restraint — were [recently](#) deposited in Afghanistan, Cuba, Nicaragua, Burundi, Cameroon, the Central African Republic, Equatorial Guinea, Eswatini, Liberia, Rwanda, and Sierra Leone. Meanwhile, of the [6,668 refugees](#) admitted since October 2025, 6,665 are white South Africans.

Trump’s authoritarian goons have also run roughshod over First and Fifth Amendment rights by attempting to deport critics of the regime’s policies. Just as Trump’s minions [according to whistleblowers](#), concocted evidence of antisemitism to suppress academic freedom at universities, they have devised a national security pretext to stamp out dissent on foreign policy.

Last week, [U.S. District Court Judge Noël Wise](#) in California held that the Trump regime had violated international students’ constitutional rights by targeting them over their views on the Middle East, specifically their criticism of Israel’s war in Gaza. This ruling follows a similar decision delivered last year by Ronald Reagan-appointed [U.S. District Court Judge William G. Young in Massachusetts](#), who held that “[n]o

one's freedom of speech is unlimited, of course, but these limits are the same for both citizens and noncitizens alike.

[Judge Wise](#) excoriated Trump's assault on free speech, finding the record "replete with examples of the government enforcing the Revocation and Deportation provisions against noncitizens who have publicly expressed—through their speech, writings, or participation in protests—disagreement with Israel or support for Palestine." But, as Judge Wise held, "noncitizens are afforded First and Fifth Amendment rights to the same extent as citizens," adding:

"Our Constitutional right to freedom of speech guarantees people the right to express—through their words, actions, or assembly—opinions that may be repugnant, views that run counter to prevailing political norms, or beliefs that otherwise challenge the country's domestic or foreign policy, military engagement, or war."

Wise, therefore, held that delegating broad discretion to the secretary of State to trample on protected speech in the name of vague goals, e.g., "countering support for terrorist groups and addressing antisemitism," runs afoul of the First and Fifth Amendments.

Judge Wise's conclusion is worth savoring:

Foundational to America's enduring democracy are our freedoms of speech and press embodied in the First Amendment. In the United States, free speech, including the freedom to criticize the government and its leaders, is not a sign of our democracy's fragility. It is evidence of its strength. That strength is diminished when members of our society—citizens and noncitizens alike—must self-censor and "behave" or suffer the government's retaliation. In March 2025, that retaliation was directed at those engaged in pro-Palestine and anti-Israel speech.

In September 2025, caught in the government's net were people critical of Charlie Kirk. In May 2026, it potentially included "weighing in on a peace deal that's being negotiated" in Iran regarding the Strait of Hormuz. Tomorrow, or perhaps even today, targets may include anyone in the United States who exercises their freedom of speech to simply express opinions the government does not like.

This downward spiral is antithetical to our Constitution that recognizes our right to speak freely. Here you can simultaneously hate the content of a person's speech and love the country that cherishes the freedom to allow it. Zealous protection of our Constitutional right to free speech is a provocative demonstration of our country's powerful lack of fear.

In the face of Trump's racist, cruel approach, Americans have recoiled at the abuse of immigration laws to terrorize minority communities, remake American demographics and silence critics. A July [NPR/PBS News/Marist](#) poll found 65 percent of Americans think ICE has gone "too far." Even more [surprising](#), on border security, which "had been Trump's reliable strength since his second inauguration in January 2025," his support dropped to a net -5, the worst result since the Strength in Numbers/Verasight tracker launched in May 2025.

And an [August Economist/YouGov poll](#) found "Trump is badly underwater on immigration," with only 40 percent approval and 53 percent disapproval (a net -13 percent), "down from +11 at the start of his second term, when 51% approved and 40% disapproved." Contrary to Trump's ICE fusillade, large majorities favor a path to citizenship for those who were brought here as children (63 percent), are married to U.S. citizens (62 percent), have lived here more than 20 years (58 percent), or have children who are U.S. citizens (55 percent).

Likewise, a [survey released Wednesday](#) from University of Maryland's Program for Public Consultation conducted in 11 competitive states and 28 congressional districts across the country showed broad support for legal status for noncriminal immigrants (Democrats 75 to 89 percent, Republicans 55 to 78 percent, overall 65 to 84 percent)

and reducing illegal immigration by requiring employers to verify work status and expanding legal work visas (75 to 90 percent of Democrats, 67 to 89 percent of Republicans). Huge bipartisan majorities “favor hiring several hundred more asylum judges and staff to significantly speed up the process of evaluating claims (Democrats 72 to 87 percent, Republicans 66 to 83 percent, overall 71 to 83 percent).

In sum, the MAGA reign of terror against immigrants has not only been a law enforcement, constitutional, and economic disaster — it has also been a political lo

Savvy Democrats should advocate replacing [rogue](#), [wildly deceitful](#), [corrupt](#), and violent agencies (both ICE and Customs and Border Protection) with law-abiding, professional entities that Americans can trust to implement [sane policies](#) to protect the border, facilitate legal immigration (i.e., provide an adequate supply of workers) and rationalize our asylum process. Any Trump official who broke the law (including any who lied to Congress or the courts) must be held fully accountable.

After experiencing Trump's heinous overreach, the American people are way ahead of the politicians. They should know that the midterms provide the opening to end this shameful chapter in immigration policy and reclaim our deepest-held values.



1,355 Likes · 291 Restacks

Discussion about this post

Comments Restacks



Write a comment...



donna woodward  Sep 2

We're tolerating the shackling of human beings before flying them to countries they have no connection whatsoever to, countries notorious for the torturous nature of their prisons. What if we come to? Have decency, shame, compassion been completely abandoned?

 LIKE (187)  REPLY



41 replies



Linda Skinner  Sep 2

Thank you very much for the updated information. Please keep putting this before us often. I am heartbroken over the young Haitian boy who committed suicide yesterday, after being bullied and he was forced to wear an ankle monitor. Ankle monitors on children. It doesn't get much more repulsive than that. So far.

 LIKE (104)  REPLY



3 replies

160 more comments...